

As Redding Municipal Code §§ 13.40.040 and 13.40.050 are the only statutes listed in the First Amended Complaint, listing Gov. Code § 815.6 is improper and Gov. Code 815.6 shall be stricken.

As the parties agree, and the Court concurs, that attorney fees should be stricken, the Court will order the prayer for attorney fees stricken without analysis.

The Motion to Strike is **GRANTED**. Gov. Code § 815.6 and the prayer for attorney fees shall be stricken from the First Amended Complaint. The Court notes that Plaintiff requested leave to amend but did not provide how any amendment could cure the defect. Unless Plaintiff appears at the hearing and provides how the defect can be cured, leave to amend will not be granted. Defendant submitted a proposed Order that will be modified to reflect the Court's ruling.

IN RE: MASSEY, III

Case Number: 25CV-0207125

Proposed Tentative Ruling on Petition for Change of Name: Petitioner William James Massey, III seeks to change his name to William James Sebree. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied, with the exception that proof of publication has not been filed. The Court intends to grant the Petition upon presentation of sufficient proof of publication. **An appearance is necessary on today's calendar.**

NELLA SEMAJ FOUNDATION, INC VS. ONE THOUSAND AND NINE, LLC

Case Number: 24CV-0205646

Tentative Ruling on Demurrer: This matter arises out of foreclosure on 18300 Antler School Road, Lakehead, CA 96051 ("Property"). Plaintiff Nella Semaj Foundation, Inc.'s Complaint alleges five causes of action for: 1. Negligence, 2. Violation of Civ. Code § 2923, et seq., 3. Violation of Business and Professions Code § 17200, et seq., 4. Wrongful Foreclosure, and 5. Declaratory Relief. Defendant One Thousand and Nine, LLC demurs to each cause of action on the grounds that they do not state facts sufficient to constitute a cause of action against them, and for uncertainty, pursuant to CCP § 430.10.

Judicial Notice: Pursuant to Evidence Code § 452, Defendant requests the Court take judicial notice of four documents relating to the Property which were recorded with the Shasta County Recorder's Office. The documents are: 1. Deed of Trust recorded July 26, 2023, 2. Notice of Default and Election to Sell Under Deed of Trust, recorded February 22, 2024, 3. Notice of Trustee's Sale recorded May 28, 2024, 5. Trustee's Deed Upon Sale recorded June 25, 2024. Plaintiff objects to the requests for judicial notice, arguing that the Court cannot accept facts contained in the judicially noticed documents as true.

Courts may notice official acts and public records, but may not take judicial notice of the truth of all matters stated therein. *Ragland v. U.S. Bank Nat'l Assn.* (2012) 209 Cal. App. 4th 182, 194 (internal citations omitted). The taking of judicial notice of the official acts of a governmental entity does not in and of itself require the acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom." *Ibid*. The exception is the grant deed; a recorded deed is an official act of the executive branch, of which courts may take judicial notice. *Ibid*. However, as the Court in *Herrera v. Deutsche Bank Nat'l Tr. Co.* (2011) 196 Cal. App. 4th 1366, 1375, explained in the context of a residential mortgage foreclosure litigation, the truth of the factual matters stated within a recorded deed, or similar document, are hearsay and cannot be considered not reasonably subject to dispute.

Here, Defendant argues that the Court may take judicial notice of the facts stated in the recorded deed regarding compliance with notice requirements, pursuant to Civ. Code § 2924(c), which provides that recitals in the deed of compliance with all requirements constitutes prima facie evidence of compliance and conclusive evidence thereof in favor of bona fide purchasers. Despite the presumption, the factual matters regarding notice may still